

WHAT ARE FINAL DOCUMENTS

Final Documents are the original recorded security instruments, assignments and final title policies that must be submitted to Flagstar after closing and recording. Receipt and review of these Final Documents by Flagstar are vital and help us avoid issues with our security while servicing the loan. It is important that all Final Documents are submitted to Flagstar in a reasonable amount of time in case any issues with the lien or chain of assignment need to be remedied. Flagstar requires that all Final Documents must be delivered to us within 90 days of the date of funding at which time they will be reviewed for accuracy.

FINAL DOCUMENTS ARE DESCRIBED AS:

- Original Recorded Security Instrument (Mortgage or Deed of Trust), plus applicable riders such as PUD, Condominium, ARM, Manufactured Home Riders etc. that are recorded by the county recorder's office. All loans should utilize MERS (Mortgage Electronic Registration Systems) and close on a MOM (MERS as Original Mortgagee) Document. The Security Instrument must have the MERS language included and the MIN (MERS Identification Number) shown on the front page. Please note, when electronically recording the Security Instrument, Flagstar will still require the original signed mortgage along with proof of electronic recording from the county recorder to satisfy our original recorded mortgage requirement.
- ALTA Title Insurance Policies issued by settlement agents. Flagstar prefers the use of ALTA Short Form Title policies on all eligible residential loans. ALTA Short Form Residential Title policies are issued at or upon closing. Unacceptable policy forms include PIRT (Policy of Insurance of Record Title), Limited liability policies, Attorney Opinion Letters, Short form policy on any Construction loans, or handwritten title policies. ALTA Final Title policy (Long Form) is issued after closing upon recording of Security Instrument and trails the title commitment or preliminary title report. ALTA title policies (including ALTA Short Forms) must be without exceptions, insuring first lien against the mortgage, including an indemnity from seller against any changes in the final title insurance policy. ALTA Policies must include jackets (when the policy requires one), authorized signatures, Legal Description, Schedule A, Schedule B, the 8.1 environmental endorsement, the ALTA 9 comprehensive endorsement plus any other required endorsements, (these schedules and endorsements are usually shown in the body of the ALTA Short Form policy and are not separate attachments).

OTHER FINAL DOCUMENTS, (IF APPLICABLE):

- Original Recorded Intervening Assignment(s) of the Security Instrument to Flagstar Bank that is recorded by the county recorder's office – needed only if the loan did not close in the name of Flagstar or is not on a MOM doc.
- Original Recorded Consolidation, Extension and Modifications (CEM), applicable in New York.(Form 3172)
- Original Recorded CEM Assignment (Assigning prior mortgage which was consolidated), applicable in New York.

Please be aware that your obligation to deliver Final Documents is not met when you include a certified true copy of either the security instrument/assignment or a preliminary title report with your closing package. Flagstar requires the original recorded mortgage/assignment that was recorded by the county or a copy of the original recorded mortgage/assignment that has been certified by the county and an original or copy of the final title policy issued by the settlement agent. We suggest that you make copies of these documents for your files before delivering the originals to Flagstar.

HOW TO DELIVER THE FINAL DOCUMENTS

It is important that Final Documents as described above should be sent as follows:

- Original or County Certified Copy of the Recorded Security Instrument/Assignment must be sent via mail at the address below using the *Final Documents Transmittal Form*, [Doc. #3668](#). You can also email to finaldocuments@flagstar.com or upload a copy by paperless upload.
- Original or copy of the Final Title Policy (long or short form) **can** be delivered via mail, an email to finaldocuments@flagstar.com or by paperless upload.

If you choose to upload the final documents, please follow these steps:

1. Login to tpo.flagstar.com
2. Enter your loan number and click Go
3. Click the *Documents* link in the *Menu section* on the left
4. Click the *Drop Files here or select file* link
5. Locate the document on your computer you would like to upload
6. Select the *Department drop down and click on Post Closing*
7. Click the *What are you uploading drop down and select the document you are uploading such as Recorded Mortgage or Final Title Policy*.
8. Click the red Upload button

Your document will then be uploaded into our imaging system. Title Policy Endorsements can also be uploaded the same way and will be labeled *Final Title Policy* as well.

Flagstar Bank, N.A.
Final Document Department, Mail Stop W-535-1
5151 Corporate Drive
Troy, MI 48098-2639

FINAL DOCUMENTATION DETAIL REPORT

Customers may find their Final Document Detail Report on our web site tpo.flagstar.com under the Customer Profile Report (CPR). The report summarizes outstanding final documents and/or final documents that need to be corrected. For further assistance, please contact Final Document Resolutions area at (248) 312-6650 or DefectiveFinalDocs@Flagstar.com.

RESOLUTION FEES FOR FAILURE TO DELIVER TIMELY AND ACCURATE DOCUMENT(S)

If any final document is incorrect or not delivered to Flagstar within 120 days of funding, Flagstar will consider the document "overdue" and take steps to remedy the missing or incorrect document through outsourcing. As a result, Flagstar maintains the right to bill customers the total actual recovery cost (which could include the cost of a replacement policy) plus recording fees to remedy any overdue/incorrect Final Document(s). Please note that Flagstar also maintains the right to restrict or halt a customer's ability to register, lock and fund loans for having overdue/incorrect Final Documents.

If the original final document(s) is not received or is unable to be remedied by Flagstar Bank within 90 days of the recording county turn time or 365 days of funding, Flagstar at its sole discretion may request the customer to repurchase the loan within 30 business days of written notice.

Repurchase may also be required at any time for any loan found where the security instrument is not of record or where Flagstar Bank is in an incorrect lien position.

Days from Funding	Action
0 – 90 days	Normal delivery
91 – 120 days	Delayed delivery
> 120 days	Overdue delivery or correction